

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2019-004792

BETWEEN:

MRS JENNIFER COLLINS

Appellant

- and -

NORTH THAMES NHS FOUNDATION TRUST

Respondent

RESPONDENT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Respondent denies negligence and contends that the clinical presentations were consistent with more common conditions, that appropriate investigations were undertaken, and that earlier diagnosis would not have altered the outcome.

B. RELEVANT FACTS

2. The Appellant's initial presentations were consistent with mechanical lower back pain, a common condition.
3. Appropriate clinical examinations were performed at each consultation.
4. Red flag symptoms only became apparent at the February 2021 consultation, at which point an urgent MRI was arranged.
5. The tumour type in question has an unpredictable progression pattern.
6. Even with earlier diagnosis, the Appellant would likely have required surgery with similar risks.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - NHS Act 2006
 - Limitation Act 1980, s.11

D. SUBMISSIONS

8. The clinical decisions taken were reasonable and in accordance with accepted practice.

9. The symptoms at the earlier consultations did not mandate MRI investigation.
10. Even with earlier diagnosis, the outcome would have been the same or similar.
11. Causation is not established on the balance of probabilities.

E. AUTHORITIES

12. The following authorities are relied upon:

- Maynard v West Midlands Regional Health Authority [1984] 1 WLR 634
- Wilsher v Essex Area Health Authority [1988] AC 1074
- Bailey v Ministry of Defence [2008] EWCA Civ 883

F. RELIEF SOUGHT

13. The Respondent respectfully requests that this Court:

- Dismiss the claim
- Costs

David Roberts KC

James Clarke

16 January 2022

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